



British Railways Act 1964

CHAPTER xvi

ARRANGEMENT OF SECTIONS

PART I

PRELIMINARY

Section

1. Short title.
2. Interpretation.
3. Incorporation of general Acts.

PART II

WORKS

4. Power to make works.
5. Period for completion of railways.
6. Stopping up of certain roads and footpaths, etc.
7. As to Bromfield level crossing.
8. As to Carn Brea level crossing.
9. As to Sawley Horse Bridge.
10. As to level crossings at Black Bank.
11. As to certain level crossings.
12. Incorporation of provisions of Act of 1963 relating to works.

PART III

LANDS

13. Power to acquire lands.
14. Acquisition of part only of certain properties.
15. Disregard of recent improvements and interests.

Section

16. Extinction of private rights of way.
17. Power to acquire easements only in certain cases.
18. Period for compulsory purchase of lands or easements.
19. Incorporation of provisions of Act of 1963 relating to lands.

PART IV

PROTECTIVE PROVISIONS

20. Incorporation of protective provisions of Act of 1963.
21. For protection of Whitehaven Corporation.
22. For protection of South Cumberland Water Board.

PART V

MISCELLANEOUS

23. Amendment of section 54 of British Transport Commission Act, 1949.
24. Repeal of obligation to maintain Glasston Dock railways.
25. Repeal of obligations in regard to footbridges at Spalding.
26. As to Wateringpit Lane and Broad Road level crossings.
27. As to footbridge and level crossing at Gwaun-Cae-Gurwen.
28. Repeals.
29. Extensions of time.
30. Powers to owners and lessees to give notice as to purchase of land.
31. Saving for town and country planning.
32. Arbitration.
33. Costs of Act.

SCHEDULES:

Schedule 1—The level crossings referred to in section 11 (As to certain level crossings) of this Act—

Part I.

Part II.

Part III.

Schedule 2—Lands referred to in subsection (2) of section 13 (Power to acquire lands) of this Act.

Schedule 3—Enactments referred to in section 28 (Repeals) of this Act.

Schedule 4—

Part I—Lands the period for the compulsory purchase of which is extended by this Act to 31st December, 1967.

Part II—Work the period for the completion of which is extended by this Act to 31st December, 1970.

ELIZABETH II



1964 CHAPTER xvi

An Act to empower the British Railways Board to construct works and to acquire lands; to extend the time for the compulsory purchase of certain lands and the completion of a certain work; to confer further powers on the Board; and for other purposes.

[10th June 1964]

WHEREAS by the Transport Act, 1962, the British Railways Board (in this Act referred to as “the Board”) were established:

And whereas it is the duty of the Board under the Transport Act, 1962 (*inter alia*) to provide railway services in Great Britain and, in connection with the provision of railway services, to provide such other services and facilities as appear to the Board to be expedient, and to have due regard, as respects all those railway and other services and facilities, to efficiency, economy and safety of operation:

And whereas it is expedient that the Board should be empowered to construct the works authorised by this Act and to acquire the lands referred to in this Act:

And whereas it is expedient that the periods now limited for the compulsory purchase of certain lands and the completion of a certain work should be extended as provided by this Act:

And whereas it is expedient that the other powers in this Act contained should be conferred upon the Board and that the other provisions in this Act contained should be enacted:

And whereas plans and sections showing the lines or situations and levels of the works to be constructed under the powers of this Act, and plans of the lands authorised to be acquired or used by this Act, and a book of reference to such plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the said lands were duly deposited in the office of the Clerk of the Parliaments and in the Private Bill Office of the House of Commons and with the clerks of the county councils of the several counties within which the said works will be constructed or the said lands are situated, which plans, sections and book of reference are respectively referred to in this Act as the deposited plans, the deposited sections and the deposited book of reference:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

PRELIMINARY

- Short title. 1. This Act may be cited as the British Railways Act 1964.
- Interpretation. 2.—(1) In this Act, unless there be something in the subject or context repugnant to such construction, the several words and expressions to which meanings are assigned by the Acts wholly or partly incorporated herewith have in relation to the relative subject-matter the same respective meanings and—
- “ the Act of 1845 ” means the Railways Clauses Consolidation Act, 1845;
 - “ the Act of 1863 ” means the Railways Clauses Act, 1863;
 - “ the Act of 1963 ” means the British Railways Act, 1963;
 - “ the Board ” means the British Railways Board;
 - “ enactment ” means any enactment, whether public, general or local, and includes any order, byelaw, rule, regulation, scheme or other instrument having effect by virtue of an enactment;
 - “ the limits of deviation ” means the limits of deviation shown on the deposited plans;

“ the Minister ” means the Minister of Transport;

“ the tribunal ” means the Lands Tribunal;

“ the works ” means the works authorised by Part II (Works) of this Act.

PART I
—cont.

(2) Any reference in this Act to any enactment shall be construed as a reference to that enactment as applied, extended, amended or varied by, or by virtue of, any subsequent enactment, including this Act.

(3) All distances and lengths stated in any description of works, powers or lands shall be construed as if the words “ or thereabouts ” were inserted after each such distance and length and distances between points on a railway shall be taken to be measured along the railway.

(4) Unless the context otherwise requires, any reference in this Act to a work identified by the number of such work shall be construed as a reference to the work of that number authorised by this Act.

3. The following Acts and parts of Acts, so far as the same are applicable for the purposes and are not inconsistent with or varied by the provisions of this Act, are incorporated with and form part of this Act and this Act shall be deemed to be the special Act for the purposes of the said incorporated enactments:—

- (a) The Lands Clauses Acts, except sections 127 to 133 of the Lands Clauses Consolidation Act, 1845;
- (b) The Act of 1845, except sections 7, 8, 9, 19, 20, 22 and 23 thereof and Part I (relating to construction of a railway) and Part II (relating to extension of time) of the Act of 1863:

Provided that—

(i) for the purposes of the provisions of the Act of 1845 and the Act of 1863 as incorporated with this Act—

(A) the expression “ the company ” where used in the said incorporated provisions means the Board;

(B) Work No. 4 shall be deemed to be a railway authorised by the special Act;

(ii) the provisions of sections 18 and 21 of the Act of 1845 shall not extend to regulate the relations

PART I
—cont.

between the Board and any other person in respect of any matter or thing concerning which those relations are regulated in any respect—

(A) by the provisions of Part II of the Public Utilities Street Works Act, 1950;

(B) by the provisions of section 33 (For protection of gas, water and electricity undertakers) of the Act of 1963 as incorporated with this Act; or

(C) by the provisions of section 22 (For protection of South Cumberland Water Board) of this Act.

PART II

WORKS

Power to make works.

4. Subject to the provisions of this Act, the Board may, in the lines or situations shown on the deposited plans and according to the levels shown on the deposited sections, make and maintain the works hereinafter described with all necessary works and conveniences connected therewith:—

In the county of Cumberland—

(Railways at Whitehaven.)

Work No. 1 A railway (2 miles 462 yards in length) commencing in the parish of Rottington in the rural district of Ennerdale in the field or enclosure numbered 4300 in the said parish on the 1/2500 Ordnance Survey map sheets nos. N.X. 9612 and N.X. 9712 (revision of 1961) at a point 237 yards north of the 70 $\frac{3}{4}$ -mile post on the railway between Saint Bees and Whitehaven and terminating in the borough of Whitehaven on the northern boundary of the field or enclosure numbered 5920 in the said borough on the 1/2500 Ordnance Survey map sheets nos. N.X. 9615 and N.X. 9715 (edition of 1962) at a point 413 yards north of the Dog and Partridge public house at Sandwith;

Work No. 2 A railway (1,457 yards in length) wholly in the rural district of Ennerdale commencing in the said parish of Rottington by a junction with the railway between Saint Bees and Whitehaven at a point 220 yards north-east of the 71-mile post on the said railway passing through the parish of Saint Bees and terminating in the said parish of Rottington at a point 80 yards south of the 72-mile post on the said railway;

Work No. 3 A railway (875 yards in length) wholly in the said parish of Rottington commencing by a

junction with Work No. 1 at a point 348 yards north-east of the commencement thereof and terminating by a junction with Work No. 2 at a point 745 yards north-east of the commencement thereof:

In the county of Surrey—

Work No. 4 A widening on both sides thereof of the (Bridge bridge in the urban district of Woking carrying the widening at railway between West Byfleet and Weybridge over Byfleet and Oyster Lane. New Haw.)

5. If Works Nos. 1, 2 and 3 are not completed within the period Period for expiring on 31st December, 1970, then, on the expiration of that completion of period, the powers by this Act granted to the Board for making railways. and completing the said works respectively or otherwise in relation thereto shall cease except as to so much thereof as shall then be completed.

6.—(1) Subject to the provisions of this Act, the Board may Stopping up stop up and discontinue the roads and footpaths or portions of of certain roads and footpaths hereinafter mentioned:— roads and footpaths, etc.

(a) In the county of Chester—

In the borough of Congleton—

so much of the road (A.527) leading from Congleton to Biddulph which is crossed by the railway at Congleton Station as lies within the boundaries of their property:

(b) In the county of Cumberland—

In the parish of Rottington in the rural district of Ennerdale—

so much of the footpaths between the points marked “ B ” and “ F ” and “ D ”, “ E ”, “ F ” and “ G ” on the deposited plans:

(c) In the counties of Derby and Leicester—

so much of the footpath situated partly in the parish of Lockington-Hemington in the rural district of Castle Donington and partly in the urban district of Long Eaton as lies between the points marked “ A ”, “ B ” and “ C ” on the deposited plans:

(d) In the county of Hertford—

In the parish of Holwell in the rural district of Hitchin and in the urban district of Hitchin—

so much of the road known as Icknield Way which is crossed by the railway between Hitchin and

PART II
—cont.

Biggleswade at the level crossing known as Cadwell crossing as lies within the boundaries of their property:

(e) In the West Riding of the county of York—

In the parish of Eggborough in the rural district of Osgoldcross—

so much of the footpath, formerly leading to Low Eggborough Road on the north side of the railway, which is crossed by the railway between Whitley Bridge and Hensall at a point 30 yards east of Low Eggborough level crossing, as lies within the boundaries of their property:

(f) In the city and county borough of Bristol—

so much of the road known as Guinea Street as crosses Guinea Street lock by means of a bascule bridge.

(2) The stopping up under this section of the portion of road in the borough of Congleton shall not take place until a new road leading from Congleton to Biddulph has been constructed over the railway on the north-east side of the said level crossing and opened for public use.

(3) The stopping up under this section of the portion of footpath partly in the parish of Lockington-Hemington and partly in the urban district of Long Eaton shall not take place until a new footpath and footbridge has been provided between the points marked "A", "D" and "C" on the deposited plans and the Board are hereby authorised to provide the same.

(4) The stopping up under this section of the level crossing known as Cadwell crossing partly in the parish of Holwell and partly in the urban district of Hitchin shall not affect the right of persons on foot to use the same and the Board shall provide and maintain for the convenience of such persons wicket gates on both sides of the railway at the said level crossing.

As to
Bromfield
level crossing.

7. The Board may for such periods as they think fit, between the hours of 10 p.m. of any day and 6 a.m. of the next succeeding day, close the road over the level crossing in the parish of Bromfield in the rural district of Ludlow in the county of Salop known as Bromfield level crossing.

As to Carn
Brea level
crossing.

8.—(1) The Board may for such periods as they think fit, between the hours of 5 p.m. of any day and 9 a.m. of the next

succeeding day and between the hours of 9 a.m. and 5 p.m. of any Sunday, close the road over the level crossing in the urban district of Camborne-Redruth in the county of Cornwall known as Carn Brea level crossing.

PART II
—cont.

(2) Notwithstanding anything in the proviso to section 4 (Power to make new railways and works) of the Great Western Railway Act, 1892, the Board shall not be required to maintain the footbridge at the level crossing referred to in this section and they may stop up and discontinue the footpath carried by the said footbridge.

9.—(1) The Board and the councils of the administrative counties of Derby and Leicester and the urban district of Long Eaton or any one or more of those councils may enter into and carry into effect agreements with regard to the provision of the footpath and footbridge authorised by subsection (3) of section 6 (Stopping up of certain roads and footpaths, etc.) of this Act and the defraying or making of contributions towards the cost of such provision and with regard to any other matters relating thereto.

As to Sawley
Horse Bridge.

(2) Any expenses incurred by any of the said councils for the purposes of this section shall be deemed to be expenses incurred by them in the exercise of their powers as a highway authority.

(3) As from the opening for public use of the footpath and footbridge referred to in subsection (1) of this section the Board shall, notwithstanding the provisions of section 43 (Regulating Construction of Bridge over the Trent) of the Midland Railway (New Lines and Additional Powers) Act, 1865, cease to be under any obligation to maintain the bridge partly in the urban district of Long Eaton in the county of Derby and partly in the parish of Lockington-Hemington in the rural district of Castle Donington in the county of Leicester adjacent to Sawley Locks and carrying the towing-path of the Trent Navigation over the river Trent referred to in the said section.

10.—(1) In this section—

“the council” means the county council of the administrative county of the Isle of Ely;

As to level
crossings at
Black Bank.

“the railway” means the railway between Black Bank and Manea;

“the existing crossings” means the level crossings in the parish of Downham in the rural district of Ely in the county of the Isle of Ely whereby the railway crosses the roads known as Main Drove and Third Drove respectively;

PART II
—cont.

“ the diverted road ” means any public road constructed by the Board or the council in substitution for any part of the said Main Drove or Third Drove respectively.

(2) The Board and the council may enter into and carry into effect agreements for the construction of a level crossing for carrying the railway across the diverted road on the level.

(3) The railway may be carried with not more than two lines of rails across and on the level of the diverted road and the provisions of the Act of 1845 and of Part I (relating to construction of a railway) of the Act of 1863 with reference to the crossing of roads on the level shall apply with respect to any level crossing constructed under the powers of this section:

Provided that—

- (a) the Board shall not be required to erect or maintain a lodge at the level crossing;
- (b) the Board may, with the consent in writing of the Minister (which consent the Minister may amend or revoke) and subject to such requirements as the Minister may from time to time lay down, instead of gates install at or near the level crossing and shall thereafter maintain such good and sufficient lifting barriers and other works and appliances in connection therewith as shall in the opinion of the Minister be necessary for the protection and safety of the public.

(4) Upon the completion and opening for public use of the level crossing for carrying the railway on the level across the diverted road the Board may stop up and discontinue the existing crossings and thereupon all rights of way over and along the existing crossings shall be extinguished.

(5) The Board and the council may enter into and carry into effect agreements with reference to the defraying or making of contributions towards the cost of constructing, maintaining and renewing any level crossing constructed under the powers of this section and with regard to any other matters relating thereto.

(6) Any expenses incurred by the council for the purposes of this section shall be deemed to be expenses incurred by them in the exercise of their powers as a highway authority.

As to certain
level crossings.

11.—(1) As from the passing of this Act, all rights of way over the level crossing referred to in Part I of Schedule 1 to this Act shall be extinguished.

(2) As from the passing of this Act, all rights of way over the level crossings referred to in Part II of the said schedule, other

than a right of way for all persons to use those level crossings as a bridleway or on foot, shall be extinguished and the Board shall provide and maintain on both sides of the railway at each of the said level crossings gates for the convenience of persons on horseback or leading horses and persons on foot.

(3) As from the passing of this Act, all rights of way over the level crossings referred to in Part III of the said schedule, other than a right of way for all persons to use those level crossings on foot, shall be extinguished and the Board shall provide and maintain on both sides of the railway at each of the said level crossings wicket gates or stiles for the convenience of persons on foot.

(4) The provisions of the Highway (Railway Crossings) Act, 1839, of section 9 of the Railway Regulation Act, 1842, of section 47 of the Act of 1845 and of sections 5, 6 and 7 of the Act of 1863 and any other provisions to the same or similar effect incorporated with or contained in any enactment relating to any of the level crossings referred to in the said schedule shall cease to apply to those level crossings.

(5) The level crossings referred to in the said schedule (including the gates thereof, other than the gates provided in pursuance of subsections (2) and (3) of this section) shall be deemed for all purposes to be works provided by the Board at the passing of this Act pursuant to section 68 of the Act of 1845 for the accommodation of the owners and occupiers of the lands adjoining the railway at each of the said level crossings respectively (that is to say) for the purpose of making good any interruptions caused by such railway to the use of the lands through which the same has been made, as if the making of such railway had been authorised by this Act.

(6) Any person who suffers loss by the extinguishment under this section of such private rights of way (if any) as may exist over the level crossings referred to in the said schedule shall be entitled to be paid by the Board compensation to be determined, in case of dispute, by the tribunal.

12. The following provisions of the Act of 1963 are incorporated with and form part of this Part of this Act:—

Incorporation
of provisions
of Act of 1963
relating to
works.

Section 5 (Power to deviate);

Section 7 (Repair of roads where level not permanently altered);

Section 11 (Stopping up roads and footpaths without providing substitute);

Section 12 (Stopping up roads and footpaths in case of diversion or substitution);

PART II
—cont.

- Section 13 (Provision as to repair of roads and footpaths);
 Section 14 (Power to make agreements with road authorities);
 Section 15 (Underpinning of houses near works);
 Section 16 (Power to make trial borings); and
 Section 17 (Use of sewers, etc., for removing water).

PART III

LANDS

Power to
acquire
lands.

13.—(1) Subject to the provisions of this Act, the Board may enter upon, take and use such of the lands delineated on the deposited plans and described in the deposited book of reference as they may require for the purposes of the works or for any purpose connected with or ancillary to their undertaking.

(2) Without prejudice to the generality of the powers conferred upon the Board by subsection (1) of this section, the Board may, subject to the provisions of this Act, enter upon, take and use for the purposes specified in column (3) of Schedule 2 to this Act all or any of the lands referred to in columns (1) and (2) of the said schedule.

(3) Subject to the provisions of this Act, the Board may enter upon, use and appropriate so much of the subsoil and under-surface of any public street, road, footway or place delineated on the deposited plans and described in the deposited book of reference as shall be necessary for the purposes of the works without being required to purchase the same or any easement therein or thereunder or to make any payment therefor.

Acquisition
of part only
of certain
properties.

14.—(1) Where a copy of this section is endorsed on, or annexed to, a notice to treat served under the Lands Clauses Consolidation Act, 1845, as incorporated with this Act, the following provisions of this section shall apply to the land subject to the notice instead of section 92 (Parties not to be required to sell part of a house, &c.) of that Act.

(2) Where the land subject to the notice is part only of a house, building or factory, or part only of land consisting of a house together with any park or garden belonging thereto, then, if the person on whom the notice is served, within twenty-one days after the day on which the notice is served on him, serves on the Board a counter-notice objecting to the sale of the part and stating that he is willing and able to sell the whole (hereinafter in this section referred to as “the land subject to the counter-notice”), the question whether he shall be required to sell the part shall, unless the Board agree to take the land subject to the counter-notice, be referred to the tribunal.

(3) If the said person does not serve such a counter-notice as aforesaid within twenty-one days after the day on which the notice to treat is served on him, or if on such a reference to the tribunal the tribunal determine that the part subject to the notice to treat can be taken without material detriment to the remainder of the land subject to the counter-notice or, in the case of part of land consisting of a house together with a park or garden belonging thereto, without material detriment to the remainder of the land subject to the counter-notice and without seriously affecting the amenity and convenience of the house, the said person shall be required to sell the part.

(4) If on such a reference to the tribunal the tribunal determine that part only of the land subject to the notice to treat can be taken without material detriment to the remainder of the land subject to the counter-notice or, as the case may be, without material detriment to the remainder of the land subject to the counter-notice and without seriously affecting the amenity and convenience of the house, the notice to treat shall be deemed to be a notice to treat for that part.

(5) If on such a reference to the tribunal the tribunal determine that the land subject to the notice to treat cannot be taken without material detriment to the remainder of the land subject to the counter-notice but that the material detriment is confined to a part of the land subject to the counter-notice, the notice to treat shall be deemed to be a notice to treat for the land to which the material detriment is confined in addition to the land already subject to the notice, whether or not the additional land is land which the Board are authorised to acquire compulsorily under this Act.

(6) If the Board agree to take the land subject to the counter-notice, or if the tribunal determine that—

- (a) none of the land subject to the notice to treat can be taken without material detriment to the remainder of the land subject to the counter-notice or, as the case may be, without material detriment to the remainder of the land subject to the counter-notice and without seriously affecting the amenity and convenience of the house; and
- (b) that the material detriment is not confined to a part of the land subject to the counter-notice;

the notice to treat shall be deemed to be a notice to treat for the land subject to the counter-notice whether or not the whole of that land is land which the Board are authorised to acquire compulsorily under this Act.

PART III
—cont.

(7) In any case where by virtue of a determination by the tribunal under subsection (4), (5) or (6) of this section a notice to treat is deemed to be a notice to treat for part of the land specified in the notice or for more land than is specified in the notice, the Board may, within six weeks after the tribunal make their determination, withdraw the notice to treat, and if they do so shall pay to the said person compensation for any loss or expense occasioned to him by the giving and withdrawal of the notice, to be determined in default of agreement by the tribunal.

(8) Where a person is under this section required to sell part only of a house, building or factory, or of land consisting of a house together with any park or garden belonging thereto, the Board shall pay him compensation for any loss sustained by him due to the severance of that part in addition to the value of his interest therein.

Disregard of
recent
improvements
and interests.

15. In determining any question of disputed compensation or purchase money in respect of land or easements or rights over or in land acquired under this Act, the tribunal shall not take into account—

- (a) any improvements or alteration made, building erected or work done after 5th December, 1963; or
- (b) any interest in the land created after the said date;

which in the opinion of the tribunal was not reasonably necessary and was made, erected, done or created with a view to obtaining or increasing the compensation or purchase money.

Extinction of
private rights
of way.

16.—(1) All private rights of way over any land that may be acquired compulsorily under this Act shall, as from the acquisition of the land, whether compulsorily or by agreement, be extinguished.

(2) Any person who suffers loss by the extinguishment of any right under this section shall be entitled to be paid by the Board compensation to be determined, in case of dispute, by the tribunal.

Power to
acquire
easements
only in certain
cases.

17. Notwithstanding anything in this Act the Board may acquire such easements or rights as they may require for the purpose of constructing, maintaining, renewing and using the works in, under or over any railway, tramway, tramroad, river, canal, navigation, watercourse, aqueduct, drain, dyke or sewer without being obliged or compellable to acquire any greater interest in, under or over the same respectively and may give notice to treat in respect of such easements or rights describing the nature thereof and (subject to the foregoing provisions of this section and to the other provisions of this Act) the provisions of

the Lands Clauses Acts shall extend and apply in relation to the acquisition of such easements or rights as if they were lands within the meaning of those Acts.

PART III
—cont.

18. The powers of the Board for the compulsory purchase of the lands and easements which they are authorised to acquire by this Part of this Act shall cease on 31st December, 1967.

Period for compulsory purchase of lands or easements.

19. The following provisions of the Act of 1963 are incorporated with and form part of this Part of this Act:—

Incorporation of provisions of Act of 1963 relating to lands.

Section 19 (Correction of errors in deposited plans and book of reference);

Section 21 (Power to expedite entry);

Section 22 (Power to enter for survey or valuation);

Section 26 (Grant of easements by persons under disability); and

Section 28 (As to cellars under streets not referenced).

PART IV

PROTECTIVE PROVISIONS

20. The following provisions of the Act of 1963 are incorporated with and form part of this Act:—

Incorporation of protective provisions of Act of 1963.

Section 29 (Crown rights);

Section 33 (For protection of gas, water and electricity undertakers).

21. For the protection of the mayor, aldermen and burgesses of the borough (in this section referred to as “the corporation”) the following provisions shall, unless otherwise agreed in writing between the Board and the corporation, apply and have effect :—

For protection of Whitehaven Corporation.

(1) In this section—

“the authorised works” means Works Nos. 1, 2 and 3 or any of the said works and includes any work in connection with any of the said works ;

“the borough” means the borough of Whitehaven;

“the bridge” means the bridge for carrying the road in the borough known as Saint Bees Road over the authorised works;

“highway” means any highway vested in or repairable or maintained by the corporation:

(2) Notwithstanding anything in this Act the Board shall in constructing the authorised works construct the bridge with a width of not less than thirty-two feet between parapets throughout the whole length of the bridge:

PART IV
—cont.

- (3) Before commencing the construction of the bridge the Board shall give notice in writing to the corporation of their intention so to do and if within two months after receiving such notice the corporation give a counter-notice in writing to the Board of their desire that the bridge shall be constructed with a specified width between parapets greater than thirty-two feet the Board shall comply with the counter-notice:
- (4) Upon the completion of the bridge in compliance with a counter-notice under paragraph (3) of this section the corporation shall pay to the Board—
- (a) the amount by which the actual cost incurred by the Board in constructing the bridge with the width specified in the counter-notice exceeds the cost which would have been incurred in constructing the bridge with a width between parapets of thirty-two feet;
 - (b) the amount by which the capitalised annual cost of maintaining the bridge when constructed with the width specified in the counter-notice exceeds what would have been the capitalised annual cost of maintaining the bridge if it had been constructed with a width between parapets of thirty-two feet:
- (5) Notwithstanding anything in this Act or shown on the deposited plans the Board shall construct the authorised works where they cross the road in the borough known as High Road in tunnel and shall secure that so much of the works as is constructed under or so as to affect the said road known as High Road shall be designed, constructed and maintained so as to carry the appropriate normal loading recommended by the Minister for highway bridges and the Board shall indemnify the corporation against and make good to the corporation all expenses which the corporation may reasonably incur or be put to in the maintenance or repair of any highway or any tunnels, sewers, drains or apparatus therein by reason of any non-compliance by the Board with the provisions of this paragraph:
- (6) Before commencing the construction of the authorised works or of any other work with which the corporation are properly concerned and which forms part of the authorised works, the Board shall submit to the corporation for their reasonable approval plans, sections and particulars relating thereto and notwithstanding anything shown on the deposited plans and the deposited sections the authorised works to which such plans,

sections and particulars relate shall not be constructed otherwise than in accordance with such plans, sections and particulars as may be approved by the corporation as aforesaid, or if such approval be refused as may be settled by arbitration, and any part of the construction of the authorised works which may involve interference with a highway shall be carried out under the supervision (if given) and to the reasonable satisfaction of the corporation:

PART IV
—cont.

Provided that if within twenty-eight days after submission to them of plans, sections and particulars in accordance with the provisions of this paragraph the corporation do not signify their approval or disapproval thereof they shall be deemed to have approved thereof:

- (7) (a) Before commencing to construct any part of the authorised works which will involve interference with a highway the Board shall consult the corporation as to the time when such part shall be commenced, and as to the extent of the surface of the highway that it may be reasonably necessary for the Board to occupy in the construction of such part, and as to the conditions under which such part shall be constructed so as to reduce so far as possible inconvenience to the public and to ensure the safety of the public, and such part shall not be constructed and the surface of the highway shall not be occupied by the Board except at the time, to the extent and in accordance with conditions agreed between the Board and the corporation or in default of agreement settled by arbitration;
- (b) Any such highway shall be reinstated by the Board in a manner reasonably approved by the corporation and to their reasonable satisfaction:
- (8) In the construction of any part of the authorised works under any highway no part thereof shall (except with the consent of the corporation) be so constructed as to interfere with the provision of proper means of drainage of the surface of any highway:
- (9) The Board shall, at all reasonable times during the construction of any part of the authorised works that may be situated in, on, under or over any land belonging to or under the control of the corporation or any highway, afford to the surveyor of the borough or his duly authorised representatives access to that part of the authorised works for the purposes of inspection:

PART IV
—cont.

- (10) The Board shall make compensation to the corporation for any subsidence of, or damage to, any highway or any property of the corporation, or under their control or repairable by them, which may be caused by, or in consequence of, any act or default of the Board, their contractors, servants or agents and whether such subsidence or damage shall happen during the construction of the authorised works or at any time thereafter:
- (11) The Board shall keep the corporation indemnified against all actions, costs, claims and demands whatsoever brought or made against the corporation by any person in respect of loss or damage caused by, or in consequence of, the construction of the authorised works:
- (12) Any difference arising between the Board and the corporation under this section (other than a difference as to the construction thereof) shall be settled by arbitration.

For protection
of South
Cumberland
Water Board.

22. For the protection of the South Cumberland Water Board (in this section referred to as “the water board”) the following provisions shall, unless otherwise agreed in writing between the Board and the water board, apply and have effect:—

- (1) In this section—

“the engineer” means the engineer of the water board;

“the mains” means so much of the 18 inch, 15 inch and 12 inch mains of the water board as are situate within the limits of deviation of Works Nos. 1, 2 and 3;

“the works” means Works Nos. 1, 2, and 3 or any of the said works and includes any work in connection with any of the said works:

- (2) Notwithstanding anything in this Act or shown on the deposited plans the Board shall not acquire nor divert the mains under the powers of this Act:
- (3) The Board shall before commencing the construction of that part of the works with which the water board are properly concerned furnish to the water board proper and sufficient plans, sections and particulars thereof for the approval of the engineer, which approval shall not be unreasonably withheld, and shall not commence the construction of the works until such plans, sections and particulars shall have been approved by the engineer or, in case of difference between the engineer and the Board, until they shall have been settled by arbitration:

Provided that if within twenty-eight days after such plans, sections and particulars have been furnished to the engineer he shall not have intimated his approval or disapproval thereof he shall be deemed to have approved them:

PART IV
—cont.

- (4) The Board shall not construct the works otherwise than in accordance with such plans, sections and particulars as may be approved or settled as aforesaid and the Board shall at all times afford reasonable facilities to the engineer for access to the works during their construction and shall supply him with all such information as he may reasonably require with regard to the works or the method of construction thereof:
- (5) The Board shall make compensation to the water board for any subsidence of or damage to the mains which may be caused by or in consequence of any act or default of the Board, their contractors, servants or agents in the construction of the works and whether such subsidence or damage shall happen during the construction of the works or at any time thereafter:
- (6) The Board shall keep the water board indemnified against all actions, costs, claims and demands whatsoever brought or made against the water board by any person in respect of loss or damage caused by, or in consequence of, the construction of the works:
- (7) Any difference arising between the Board and the water board or the engineer under this section (other than a difference as to the construction of this section) shall be settled by arbitration:
- (8) The provisions of section 33 (For protection of gas water and electricity undertakers) of the Act of 1963 as incorporated with this Act shall not apply to the mains.

PART V

MISCELLANEOUS

23. In its application to the Board and British Transport Amendment of Hotels Limited pursuant to the provisions of Part III of the section 54 of Second Schedule to the Transport Act, 1962, subsection (3) of British section 54 (Powers of police as to search and arrest) of the Transport Commission Act, 1949, as amended by British section 77 (Amendment of section 54 of Act of 1949) of the Transport Commission Act, 1959, shall have effect as if the words "one thousand nine hundred and sixty-nine" were substituted for the words "one thousand nine hundred and sixty-four".

PART V
—cont.

Repeal of
obligation to
maintain
Glasson Dock
railways.

24.—(1) The Board are hereby released from all obligations under the agreement referred to in this section to maintain—

- (a) the three railways referred to in the said agreement (known as the Glasson Dock railways); or
- (b) any stations, sidings, approaches, works and conveniences connected therewith.

(2) The agreement referred to in this section is an agreement dated 21st June, 1878, between the London and North-western Railway Company of the one part and the Commissioners and Trustees of the Port of Lancaster of the other part scheduled to and confirmed by the London and North-western Railway (New Railways, &c.) Act, 1878.

(3) Any person who suffers loss by the extinguishment by this section of any private right shall be entitled to be paid by the Board compensation to be determined, in case of dispute, by the tribunal.

Repeal of
obligations in
regard to
footbridges
at Spalding.

25. Notwithstanding anything in the proviso to section 31 (Power to Committee to cross certain roads on the level) of the Midland Railway Act, 1894, the Board shall not be required to provide footbridges at the level crossings referred to therein.

As to
Wateringpit
Lane and
Broad Road
level crossings.

26. Paragraph (6) of section 15 (As to certain level crossings) of the British Transport Commission Act, 1955, shall cease to apply to the level crossings known as Wateringpit Lane crossing and Broad Road crossing referred to in Part IV of the Third Schedule to that Act.

As to foot-
bridge and
level crossing
at Gwaun-
Cae-Gurwen.

27.—(1) Notwithstanding anything in paragraph (4) of section 18 (For protection of Glamorgan County Council) of the Great Western Railway Act, 1911, the Board shall not be required to keep open and maintain the footbridge referred to in the said paragraph, and they may stop up and discontinue the footpath carried by the said footbridge.

(2) The stopping up under this section of the footpath carried by the said footbridge shall not take place until a footpath has been provided by the Board in substitution therefor, which substituted footpath shall be maintained by the Board in perpetuity, and the Board shall also provide and maintain, for the convenience of persons crossing the railway on foot by means of such substituted footpath, wicket gates on both sides of the railway.

Repeals.

28.—(1) The enactments referred to in columns (1) and (2) of Schedule 3 to this Act are hereby repealed to the extent specified in column (3) of the said schedule.

(2) Any person who suffers loss by the extinguishment by this section of any private right shall be entitled to be paid by the Board compensation to be determined, in case of dispute, by the tribunal.

PART V
—cont.

29.—(1) The period now limited by the British Transport Commission Act, 1961, for the compulsory purchase of the lands referred to in Part I of Schedule 4 to this Act is hereby extended until 31st December, 1967. Extensions of time.

(2) The period now limited by the British Transport Commission Act, 1958, for the completion of the work referred to in Part II of the said schedule is hereby extended until 31st December, 1970.

(3) The powers for the compulsory purchase of the said lands and for the completion of the said work shall cease on the said respective dates except in so far as any such powers shall by then have been exercised.

(4) In this section and in the said schedule the word “lands” includes any easements or rights in, under or over land authorised to be acquired by the enactments referred to in the said schedule.

30.—(1) In this section—

Powers to
owners and
lessees to
give notice as
to purchase of
land.

“the enabling Act” means the British Transport Commission Act, 1961;

“the land” means any land which is for the time being authorised to be acquired compulsorily by the enabling Act not being land referred to in subsection (4) of this section;

“lessee” means a lessee under a lease having a period of not less than twenty-one years to run at the date of his notice under subsection (2) of this section.

(2) If any person being the owner or lessee of any of the land shall give notice in writing to the Board of his desire that his interest in any part of the land specified in the notice shall be acquired as soon as may be the Board shall within a period of three months after the receipt of such notice—

(a) enter into a contract with such person for the acquisition of his interest in the land or such part thereof as may be specified in the contract; or

(b) serve a notice to treat for the compulsory acquisition of the interest of such person in the land specified in his notice or in such part thereof as may be required by the Board; or

(c) serve on such person notice in writing of their intention not to proceed with the purchase of the interest of such person in the land specified in his notice.

PART V
—cont.

(3) Where notice is given under the last foregoing subsection by an owner or lessee of land specified in the notice then—

(a) if the Board—

(i) fail to comply with that subsection; or

(ii) withdraw in pursuance of any statutory provision a notice to treat served on him in compliance with paragraph (b) of that subsection; or

(iii) serve notice on him in compliance with paragraph (c) of that subsection;

the powers conferred by the enabling Act for the compulsory purchase of his interest in the land so specified shall cease;

(b) if his interest in part only of the land so specified is acquired in pursuance of such a notice to treat the powers conferred by the enabling Act for the compulsory purchase of his interest in the remainder of the land so specified shall cease.

(4) This section shall not apply to land which the Board are by the enabling Act authorised to acquire for the purposes of a work which is shown on the sections deposited in respect of the Bill for the enabling Act as intended to be constructed under the surface of such land.

Saving for
town and
country
planning.

31. The provisions of the Town and Country Planning Act, 1962, and any restrictions or powers thereby imposed or conferred in relation to land shall apply and may be exercised in relation to any land notwithstanding that the development thereof is, or may be, authorised or regulated by or under this Act.

Arbitration.

32. Where under this Act any difference (other than a difference to which the provisions of the Lands Clauses Acts apply) is to be referred to or settled by arbitration, then, unless otherwise provided, such difference shall be referred to and settled by a single arbitrator to be agreed between the parties or failing agreement to be appointed, on the application of either party (after notice in writing to the other), by the President of the Institution of Civil Engineers.

Costs of Act.

33. All costs, charges and expenses of and incident to the preparing for, obtaining and passing of this Act, or otherwise in relation thereto, shall be paid by the Board and may in whole or in part be defrayed out of revenue.

SCHEDULES

SCHEDULE 1

THE LEVEL CROSSINGS REFERRED TO IN SECTION 11 (AS TO CERTAIN LEVEL CROSSINGS) OF THIS ACT

PART I

In the West Riding of the county of York—

In the parish of Eggborough in the rural district of Osgoldcross—

The level crossing known as Low Eggborough crossing whereby Low Eggborough Road is crossed by the railway between Whitley Bridge and Hensall stations.

PART II

In the county of Dorset—

In the parish of West Knighton in the rural district of Dorchester—

The level crossing known as Knighton crossing whereby an unnamed road immediately to the west of Knighton Heath Wood is crossed by the railway between Moreton and Dorchester South stations.

In the county of Northampton—

In the parish of Easton on the Hill in the rural district of Oundle and Thrapston—

The level crossing known as Tinwell crossing whereby the road from Easton on the Hill to Tinwell is crossed by the railway between Ketton and Collyweston and Stamford Town stations.

In the parish of Lamport in the rural district of Brixworth—

The level crossing known as Hanging Houghton crossing whereby the road from the Cottesbrooke to Brixworth road to the Lamport to Brixworth road is crossed by the railway between Brixworth and Lamport stations.

PART III

In the county of Leicester—

In the parish of Freeby in the rural district of Melton and Belvoir—

The level crossing known as Brentingby crossing whereby the road from Brentingby to the river Eye is crossed by the railway between Melton Mowbray (Town) and Ashwell stations.

SCH. 1
—cont.

In the East Riding of the county of York—

In the parish of Burton Agnes in the rural district of Bridlington—

The level crossing known as Thornholme crossing whereby Moor Lane is crossed by the railway between Burton Agnes and Carnaby stations.

In the West Riding of the county of York—

In the parish of Snaith and Cowick in the rural district of Goole—

The level crossing known as Church Lane crossing whereby the road from Gowdall Lane to Market Place is crossed by the railway between Hensall and Snaith stations.

In the county of Westmorland—

In the urban district of Windermere—

The level crossing known as Droomer crossing whereby Droomer Road is crossed by the railway between Staveley and Windermere stations.

SCHEDULE 2

Section 13. LANDS REFERRED TO IN SUBSECTION (2) OF SECTION 13 (POWER TO ACQUIRE LANDS) OF THIS ACT

Area	No. on deposited plans	Purpose for which the lands may be acquired or used
(1)	(2)	(3)
In the county of Lancaster— Urban district of Kearsley ...	1	To extend the embankment of the railway between Kearsley and Clifton Junction.

SCHEDULE 3

ENACTMENTS REFERRED TO IN SECTION 28 (REPEALS) OF THIS ACT Section 28.

Session and chapter	Title or short title	Extent of repeal
(1)	(2)	(3)
16 & 17 Vict. c. ccxiii	St. George's Harbour Act, 1853	Section XX (Company to erect and maintain a Station at a certain Point shown on Plan; and to maintain Carriageway &c.).
47 & 48 Vict. c. clxxxi	Dore and Chinley Railway Act, 1884	Section 32 (For protection of the Duke of Devonshire); Paragraph (D) of section 33 (For protection of the Duke of Rutland).
56 & 57 Vict. c. i	Manchester, Sheffield and Lincolnshire Railway (Extension to London, etc.) Act, 1893	Paragraph (14) of section 21 (For the protection of the Corporation of Nottingham).
10 Edw. 7 and 1 Geo. 5 c. xli	Mansfield Railway Act, 1910	Paragraph (1) of section 49 (For protection of Sutton-in-Ashfield Urban District Council). Paragraph (3) of section 50 (For protection of Kirkby-in-Ashfield Urban District Council).

SCHEDULE 4

PART I

Section 29. LANDS THE PERIOD FOR THE COMPULSORY PURCHASE OF WHICH IS EXTENDED BY THIS ACT TO 31ST DECEMBER, 1967

The lands authorised to be acquired by section 21 (Power to acquire lands) of the British Transport Commission Act, 1958—

- (1) for the purposes of Works Nos. 5, 18 and 19 authorised by Part II (Works) of the said Act;
- (2) in the parish of Shafton in the rural district of Hemsworth in the West Riding of the county of York.

PART II

WORK THE PERIOD FOR THE COMPLETION OF WHICH IS EXTENDED BY THIS ACT TO 31ST DECEMBER, 1970

Work No. 5 authorised by section 5 (Power to make works) of the British Transport Commission Act, 1958.

Table of Statutes referred to in this Act other than those referred to in Schedule 3

Short title	Session and chapter
Highway (Railway Crossings) Act, 1839 ...	2 & 3 Vict. c. 45.
Railway Regulation Act, 1842	5 & 6 Vict. c. 55.
Lands Clauses Consolidation Act, 1845 ...	8 & 9 Vict. c. 18.
Railways Clauses Consolidation Act, 1845	8 & 9 Vict. c. 20.
Railways Clauses Act, 1863	26 & 27 Vict. c. 92.
Midland Railway (New Lines and Addi- tional Powers) Act, 1865	28 & 29 Vict. c. ccclix.
London & North-western Railway (New Railways, &c.) Act, 1878	41 & 42 Vict. c. clxxxii.
Great Western Railway Act, 1892 ...	55 & 56 Vict. c. ccxxxiii.
Midland Railway Act, 1894	57 & 58 Vict. c. xcvi.
Great Western Railway Act, 1911 ...	1 & 2 Geo. 5 c. lxxxv.
British Transport Commission Act, 1949	12 & 13 Geo. 6 c. xxix.
Public Utilities Street Works Act, 1950 ...	14 Geo. 6 c. 39.
British Transport Commission Act, 1955	4 Eliz. 2 c. xxx.
British Transport Commission Act, 1958	6 & 7 Eliz. 2 c. xliv.
British Transport Commission Act, 1959	7 & 8 Eliz. 2 c. xliv.
British Transport Commission Act, 1961	9 & 10 Eliz. 2 c. xxxvi.
Town and Country Planning Act, 1962 ...	10 & 11 Eliz. 2 c. 38.
Transport Act, 1962	10 & 11 Eliz. 2 c. 46.
British Railways Act, 1963	1963 c. xviii.

PRINTED BY THE SOLICITORS' LAW STATIONERY SOCIETY, LTD., FOR
SIR PERCY FAULKNER, K.B.E., C.B
Controller of Her Majesty's Stationery Office and Queen's Printer of Acts of Parliament
LONDON :PUBLISHED BY HER MAJESTY'S STATIONERY OFFICE

Price 1s. 6d. net

PRINTED IN ENGLAND